

CHAPTER 2: GENERAL PROVISIONS

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CHAPTER 2: GENERAL PROVISIONS

Section 2.1 Applicability of General Provisions

The following provisions shall apply throughout the jurisdiction of this Ordinance, regardless of the underlying regulating district.

Section 2.2 General Lot Standards

A. No building, land or portion thereof shall be erected, used, moved, or altered except in conformity with the regulations specified for the district in which it is located.

B. No lot existing upon adoption of this Ordinance shall be reduced in size or area below the minimum requirements of the regulating district. Yards or lots created after the effective date of this Ordinance shall meet the minimum requirements established by this Ordinance. The location of required front, side and rear yards on irregularly shaped lots shall be determined by the Zoning Administrator. The determination will be based on the spirit and intent of this Ordinance to achieve an appropriate spacing and location of buildings and structures on individual lots.

C. Orientation of Lot Lines: Side lot lines shall be substantially at right angles or radial to street lines. Substantially shall be known as a tolerance of plus or minus fifteen (15) degrees of a right angle or a radial line. Double-frontage lots shall be avoided wherever possible. Where side lot lines intersect at the rear of the lot the angle of intersection shall not be less than thirty (30) degrees.

D. Front and side yard setbacks for infill lot development shall be equal to the average for similar principal structures on the same side of the street and within the same zoning district within 300 feet of either side of the lot in question.

E. Corner lots shall be considered to have two (2) front yards and shall utilize the minimum front setback for each street frontage. The setback for the non-primary frontage on corner lots may be reduced upon approval of the Zoning Administrator to no less than the minimum side setback. No structure shall be located within the sight triangle as defined by this Ordinance.

F. Only one (1) principal building and its customary accessory building(s) shall be located on any lot, except as allowed in individual districts for non-residential, multi-family residential, and mixed use developments.

G. Nothing in this Ordinance shall require any change in the plans, construction, or designed use of any building or structure for which a building permit was secured prior to the adoption of this Ordinance, providing the building permit remains valid.

H. Right-of-Way Observation: All new lots having frontage on a state or publicly maintained road where no right-of-way is recorded by deed or plat, shall be required to observe a minimum sixty-foot right-of-way, i.e. thirty (30) feet from roadway centerline, unless otherwise suggested in Appendix A.

I. All lots shall front upon a street built in accordance with this Ordinance. Minimum street frontage is established for each zoning district in Chapter 7. Generally, all buildings shall front directly upon a street and shall be of sufficient design to allow for the provision of emergency services. Flag lots, which are only accessed by a narrow strip of land, are not permitted.

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J. Essential services as defined by this ordinance are not subject to the minimum setbacks set forth in the zoning districts.

K. Canopies, awnings, bicycle parking, outdoor seating areas, and front porches may encroach into the front setback up to eight (8) feet.

Section 2.3 Uses Not Expressly Permitted by Right or Conditionally

Uses designated as "permitted uses" and "uses permitted with supplemental regulations" are allowed in a district as a matter of right if other applicable regulations of this Ordinance are met. Uses classified as "special uses" are permitted upon approval of a development plan by the Town Council.

Proposed uses not listed in the Permitted Uses Table shall be evaluated by the Zoning Administrator to determine the nearest similar use.

Section 2.4 Conformance with Adopted Plans

The regulations adopted pursuant to this Ordinance shall be consistent with the Comprehensive Plan and any specific plans adopted by the Town Council. All new developments shall be designed in conformance with adopted plans including but not limited to the Comprehensive Plan, small area plans, land use plans, parks and recreation plans, thoroughfare plans, and school plans.